

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendants,

CSAA INSURANCE EXCHANGE,

CARBONE, SMITH & KOYAMA,

and MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF MOTION TO STRIKE
PLEADING**

(C.C.P. § 435 AND C.C.P. § 436)

DATE: May 22, 2026

TIME: 9:00 a.m.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, and
2 MICHAEL R. CHAMBERS (collectively “Defendants”) hereby jointly request that this Court take
3 judicial notice of the following pursuant to California Evidence Code §§ 452, 453, and California
4 Code of Civil Procedure § 430.70:

5 1. Plaintiff’s First Amended Complaint in the instant action. (A true and correct copy
6 is attached to the Declaration of Tyler J. O’Connell as Exhibit A.)

7 2. Register of Actions, in *Rosario v. Abdelhalim*, San Francisco County Superior Court
8 Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration of Tyler J.
9 O’Connell as Exhibit B.)

10 3. Defendant’s Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San
11 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
12 to the Declaration of Tyler J. O’Connell as Exhibit C.)

13
14 Dated: April 22, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

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16
17 By _____
18 Chad S. Tapp
19 Tyler J. O’Connell
20 Attorneys for Defendants,
21 CSAA INSURANCE EXCHANGE,
22 CARBONE, SMITH & KOYAMA, and
23 MICHAEL R. CHAMBERS
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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document: **REQUEST FOR JUDICIAL
7 NOTICE IN SUPPORT OF MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on April 22, 2026.

20 **Monique Schubert**
21 Monique Schubert